

**PLACER COUNTY SUPERIOR COURT**  
**THURSDAY, CIVIL LAW AND MOTION**  
**DEPARTMENT 3**  
**THE HONORABLE MICHAEL W. JONES**  
**TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.**

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unpaid principal plus \$3,578.30 in attorney's fees, \$508.55 in court costs, and \$1,594.36 in interest for a total judgment entered of \$39,247.17.

**11. S-CV-0055515      HENSCH, MATTHEW v. HENGL, KEVIN**

Defendants Kevin Hengl, Richard Hengl, Superior Preservation & Construction, and Superior Custom Construction, LLC's Motion for Leave of Court to File an Amended Answer and Cross Complaint

Preliminary Matters

Defendants' objections are overruled in their entirety.

Ruling on Motion

Defendants seek leave of court to file a cross-complaint and an amended answer.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

The proposed cross-complaint alleges causes of action for (1) Breach of Contract; (2) Unjust Enrichment; (3) Quantum Meruit; (4) Contribution; (5) Equitable Indemnity; and (6) Declaratory Relief—all of which arise from the same transactions as plaintiffs' complaint. The court finds no evidence defendants acted in bad faith. The court further finds there is no risk of substantial prejudice to any party if leave is granted. The court similarly finds defendants did not act in bad faith nor is there substantial risk of prejudice to any party if leave is granted to file the proposed amended answer.

Defendants' motion for leave to file a cross-complaint and first amended answer is granted. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a), 473, subd. (a)(1), 576.) Defendants shall file and serve the cross-complaint and first amended answer attached to the declaration of Trevor White on or before **July 13, 2026**.